
IN THE FOURTH JUDICIAL DISTRICT, PROVO DEPARTMENT
IN AND FOR UTAH COUNTY, STATE OF UTAH

STATE OF UTAH,

Plaintiff,

v.

TYLER JAMES ROBINSON,

Defendant.

**RULE 8 DECLARATION
OF RICHARD G. NOVAK**

Case No. 251403576

Judge Tony F. Graf Jr.

Pursuant to Rule 8 of the Utah Rules of Criminal Procedure I hereby certify that:

1. I have been in the practice of law since 1990, with an emphasis on criminal defense work, including capital defense for the last 20 years. From 1996 to 2002, I was a Deputy Federal Public Defender in the Office of the Federal Public Defender for the Central District of California. From 2005 to present, I have been in private practice, representing on an appointed and retained basis, individuals who have been under criminal investigation or who have been charged in state or federal court with criminal offenses.
2. I have previously appeared as lead or co-counsel in over 25 death-eligible homicide prosecutions in federal courts in Alaska, Arizona, Nevada, and California, and in state court in California. Eight of those cases proceeded to final verdict. *See* Addendum A. I also have experience representing in federal capital habeas corpus proceedings approximately eight individuals who have been sentencing death, and I have been counsel in the United State Courts of Appeal on behalf of individuals charged with or convicted of capital offenses.
3. I am admitted to practice in the State of California, before the United States Supreme Court, and the Ninth Circuit Court of Appeal, and in all of the federal district courts in California, as well as those in Arizona, Nevada, Colorado, and Alaska.
4. I have sufficient time and resources to dedicate to the representation of Mr. Robinson in this matter. I do not presently represent any other pre-trial defendant as to whom the prosecuting authority has noticed its intention to seek the death penalty.
5. I have attended well over 250 hours of in person CLE devoted exclusively to the defense of individuals facing capital charges, approximately 25 of which were attended within the last year.

6. I have presented at least 25 hours of in person CLE devoted to the defense of individuals facing capital charges in recent years. In recent years, I have conducted legal trainings in capital defense and related issues at seminars and trainings sponsored by the National Association of Criminal Defense Attorneys, the California Attorneys for Criminal Justice/California Public Defender Association, the training branch of the Administrative Office of the United States Courts, Federal Public Defender Offices in the Eastern and Central Districts of California, the Northern District of California, and the Northern District Practice Program.
7. I will also attend and teach at additional CLE seminars devoted exclusively to the defense of individuals facing capital charges within the next year.
8. I consider myself to be qualified at the trial level in representing a criminal defendant in capital proceedings.

DATED this 25th day of September, 2025.

/s/ Richard G. Novak

ADDENDUM A
CAPITAL/HOMICIDE TRIAL EXPERIENCE

Case Name	Case Number	Went to Final Verdict
<i>U.S. v. Spurlock</i>	3:23-cr-22-MMD-CLB	
<i>U.S. v. Johnny Martinez</i>	8:22-cr-00034-FWS-3	
<i>U.S. v. Carlos Gonzalez</i>	CR-18-172-GW-6	Jury trial.
<i>U.S. v. Eddy Reyes</i>	SA CR 21-00075-JLS-1	
<i>U.S. v. Stephen Beal</i>	SA CR 19-00047-JLS-1	
<i>U.S. v. Jason Corbett</i>	2:19-cr-00107-KJM-8	
<i>U.S. v. Siaki Tavale</i>	5:18-cr-506-BLF-3	
<i>U.S. v. Daniel Chavez</i>	5:15-cr-00285-CRB-1	
<i>U.S. v. Robert Justus</i>	4:20-cr-00265-YGR-2	Jury trial.
<i>U.S. v. Jonathan Nelson</i>	3:17-cr-00533-EMC-1	Jury trial.
<i>U.S. v. Alvaro Reina-Cordero</i>	3:20-cr-00328-WHO-2	
<i>U.S. v. David Williams</i>	CR-18-01595-JAS-1	
<i>U.S. v. Christopher Ruiz</i>	CR-18-00250-CJC-3	Jury trial.
<i>U.S. v. Samuel Rivas</i>	CR-17-297-ODW-15	
<i>U.S. v. Jose Loza</i>	CR-16-390-VAP-1	Jury trial.
<i>U.S. v. Mario Delgado</i>	CR-15-688-DSF-11	
<i>U.S. v. Paul Ciancia</i>	CR-13-902-PSG-1	
<i>U.S. v. Brian Giron</i>	CR-09-466-DSF-8	
<i>U.S. v. James Leon Guerrero</i>	CR-08-259-PMP-2	
<i>U.S. v. Vladimir Iraheta</i>	CR-07-1172-BRO-25	Jury trial.
<i>U.S. v. Patrick Holifield</i>	CR-05-920-RSWL-3	
<i>U.S. v. Horacio Yepiz</i>	CR-05-578-JFW-3	Jury trial.
<i>U.S. v. Richard McIntosh</i>	CR-2-938-VAP-28	
<i>People v. Cory Spurlock</i>	BFE21001963	
<i>People v. Dewayne Cornelius Palm</i>	PA060413-01	Jury trial.

CERTIFICATE OF SERVICE

I hereby certify that on this 25th day of September, 2025, I caused a true and correct copy of the foregoing **RULE 8 DECLARATION OF RICHARD NOVAK** to be filed via electronic filing, which provides automatic notice to the prosecution of record.

/s/ Kathryn Nester